

OFFICE OF THE SECRETARY

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Sacramento, CA 94283-0001



The Honorable Peter C. Deddeh
Judge of the Superior Court
County of San Diego
P.O. Box 122724
San Diego, CA 92112-2724

Re: David Wayne Berlin
CDCR No: T01637
Case No: SCD152715/SCD150935
Date of Sentence: August 8, 2000

Dear Honorable Peter C. Deddeh:

The purpose of this letter is to provide the court with the authority to resentence inmate David Berlin, T01637, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, Subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Berlin has remained disciplinary free since his arrival at CDCR. A review of inmate Berlin's file indicates he has participated in several Self-Help Groups such as Narcotic Anonymous and Alcoholics Anonymous. Inmate Berlin has received 18 Laudatory 128B's from various staff and volunteers. He also has utilized his artistic skills coupled with a work ethic that have benefited custody staff.

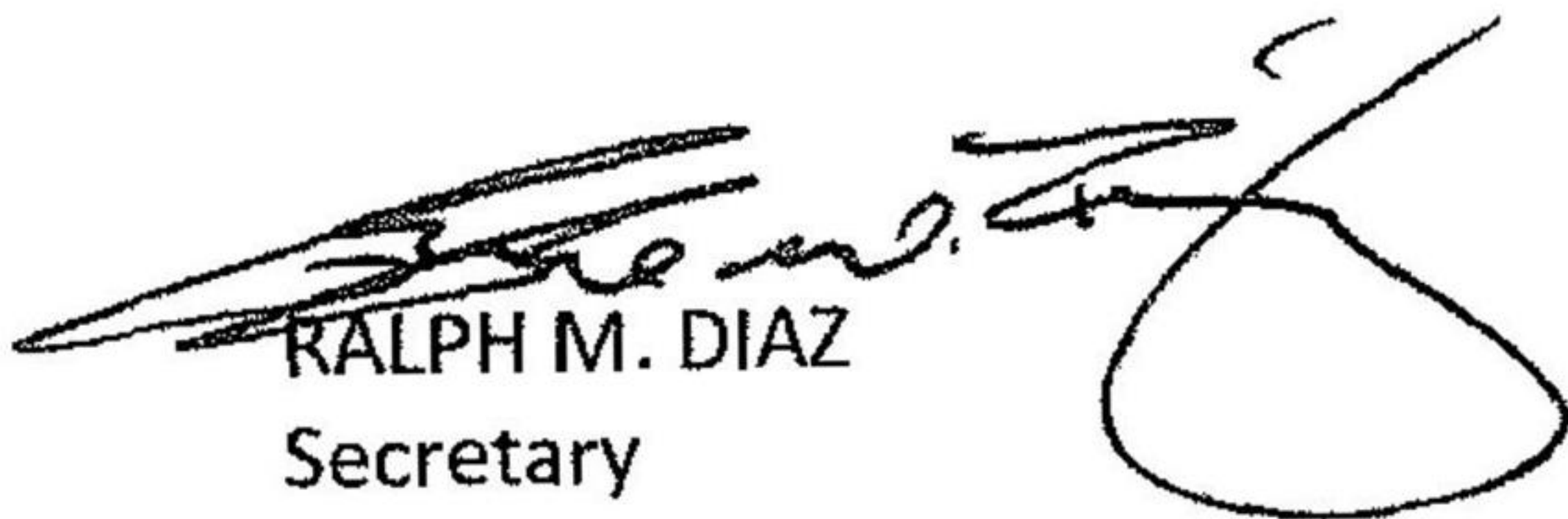
Inmate Berlin also was convicted under Case Number SCD154521 where it was presided over by the Honorable John M. Thompson.

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Having reviewed the enclosed documentation, it appears that inmate Berlin's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Michael M. Roddy, County Court Executive Officer
San Diego County District Attorney's Office
San Diego County Public Defender's Office